

*Reply of
Nitin to
claim
statement*

BEFORE THE HON'BLE SOLE ARBITRATOR

MR. NITIN N. SARDESSAI, SR. ADVOCATE

AT PANAJI GOA

IN THE MATTER OF :-

Mr. Vikram Shah

son of late Chinubhai Manilal Shah,

aged 74 years, married,

businessman, Indian National,

resident of 28, Capri Building,

9, Manav Mandir Road,

Near Teen Batti Walkeshwar,

Malabar Hill, Mumbai - 400 006.

Maharashtra.

...Claimant



Versus

1. Mr. Riva Trindade

Major of age, Resident of

Palbrika Mansion,

NIO Circle,

Dona Paula,

Tiswadi, Goa - 403004;

2. Mrs. Albertina Trindade

Major of age,

Resident of Palbrika Mansion,

NIO Circle, Dona Paula,

Tiswadi, Goa - 403004;



3. Mrs. Karita Trindade

Major of age,

Resident of Palbrika Mansion,

NIO Circle, Dona Paula,

Tiswadi, Goa - 403004;

4. Mr. Murlidhar Sadarangani

Son of Shamdas Jetaram Sadarangani,

Aged about 66 years,

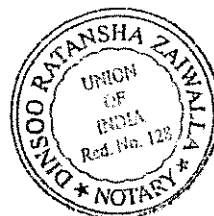
Resident of S-3, Eden Hall,

Dr. Annie Beasant Road,

Worli, Mumbai - 400 018.

...Respondent

(all the above are registered addresses of the parties)



REPLY OF RESPONDENT NO. 4 TO PUT FACTS ON
RECORD REGARDING THE CLAIM STATEMENT
FILLED AGAINST RESPONDENT NO. 1 TO 3

MAY IT PLEASE THE LD. ARBITRATOR

The Respondent No. 4 above named most respectfully states and submits as under:

1. The Respondent No. 4 states that he is a businessman of repute and is *inter alia* engaged in the business of property investments.
2. The Respondent No. 4 states that the present Arbitration is pursuant to invocation of Arbitration clause of Article of Association dated 01/04/20213 entered into between the Mr. Pascoal Trindade (Pascoal since deceased), the Claimant Mr.



Vikram Shah and the Respondent No. 4 herein, and marked as Annexure A to the claim statement is a copy of the Articles of Association dated 01/04/2013.

3. I am one of the parties in the Articles of Association Agreement dated 1st April 2013 (for short AOA Agreement) which Agreement is inter alia for development of properties in Goa detailed in Schedule I and II of the said AOA Agreement.
4. Certain disputes have arisen under the said AOA Agreement and one of the signatories Mr. Vikram Shah (the Claimant herein), and such disputes are referred to Arbitration of Senior Advocate Mr. Nitin. N. Sardesai as the sole Arbitrator under the High Court Order dated 07.08.2024.
5. The Respondent no. 4 states that Respondent No.1 to 3 are the heirs of late Mr. Pascoal Trindade, who was a business associate of the Claimant for more than 30 years. The Claimant and Late



Mr. Pascoal Trindade formed various commercial entities for various projects undertaking by them on mutual understanding. They have been in the construction and development business since 1990 as admitted by the Claimant in Clause 4 of the Claim Statement. I am not concerned in any of the said undertakings carried out by the late Pascoal and the Claimant.

6. The said Mr. Vikram Shah has filed a statement of claim dated 20.01.2025 before the said learned Arbitrator for reliefs set out in his statement of claim dated 20.01.2025. The said AOA Agreement has been annexed to the said statement of claim of Mr. Vikram Shah.
7. I submit that no reliefs have been claimed against me in the said statement of claim dated 20.01.2025 and therefore no reply can be filed by me to the said statement of claim.
8. Since the dispute arises solely from the said AOA Agreement to which I am a party as the party of the third Part and even though



no reliefs are sought against me I am appearing before the learned Arbitrator in person to ensure that no adverse orders are sought against me contrary to the terms of the said AOA Agreement.

9. Besides the aforesaid it may be noted that under the said AOA Agreement dated 01.04.2013, if any expenditure is required to be made for removing any encumbrances claim or demand as mentioned in clause 16 of the above, the same are required to be borne only by the party of the First Part and Second Part to the said AOA Agreement.

10. Besides, the claim of the claimants suffers from non-joinder of essential parties. I must repeat for the knowledge of the Arbitrator that the said AOA has entered into a Joint Venture Agreement with Kuval Projects Pvt. Ltd. dated 25.04.2014 (copy annexed and marked as Annexure G to the claim statement) and as also mentioned in clause 6(n) of the Claim Statement. Kuval Projects Pvt. Ltd. has paid Rs. 2,21,00,000/- (Rs. Two Crores Twenty-One

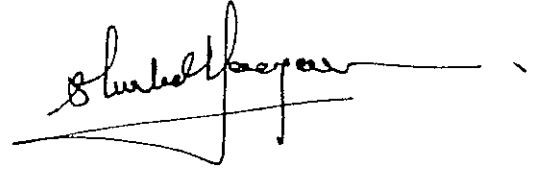


Lakhs only) as and by way of non-interest bearing refundable deposit to the AOA and admitted in clause 6(o) of the Claim Statement, which is the liability on the AOA, as reflecting in the balance sheet of PVM Associates annexed to the claim statement and marked as **Annexure O** (as mentioned in clause 11 of the Claim Statement). Kuval Projects have also put in close to 10 crores in putting up the building of 3 wings consisting of 24 flats of 200 sq.mtrs each. Constructed on the property situated in Schedule I to the AOA. The market value after completion of these flats which according to the claimant are 80% complete is much more than 50 crores. It is therefore imperative that Kuval Projects Pvt. Ltd., is joined as necessary and essential party before any adjudication can be carried out.

11.I further state that if any claim is claimed /Awarded the same cannot be in favour of only one party to the said AOA Agreement. Particularly, since the said AOA Agreement of PVM Associates is a subsisting entity.



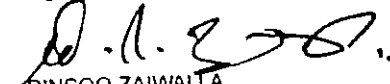
Solemnly affirmed at Mumbai on this 13th day of February, 2025.



DEPONENT

Before me:

Signed Before Me,



DINSOO ZAIWALLA
NOTARY
UNION OF INDIA
R.S.No/605DL/13,02/2025

Dinsoo Zaiwalla
Zaiwalla & Co.
Advocates, Solicitors & Notary
43, Veer Narayan Road, Fort,
Mumbai-400 001. (India)

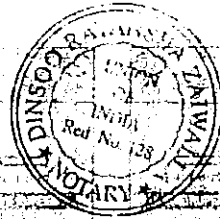


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